

Time and timing: On the CEC selection process

The **validity** of the CEC selection process **needs** early **adjudication**

Once again, the **manner** of appointment of the Chief Election Commissioner (CEC) and Election Commissioners (EC) **has** become controversial, with the government going ahead with the process **laid down** in its December 2023 law, which is under challenge before the Supreme Court. Last week, the Court had **deferred** the **hearing** to February 19, while observing that if there was any **development** in the **interregnum**, it would **meet** the consequences of a subsequent decision on the validity of the Act. Ignoring a request from the Leader of the Opposition (LoP), Rahul Gandhi, the panel **elevated** Gyanesh Kumar as the CEC and **inducted** Vivek Joshi as the third member, **following** the retirement of CEC Rajiv Kumar. The question is whether the Act of 2023 goes against a 2022 **Constitution Bench verdict** that **put in place** a committee comprising the Prime Minister, the LoP and the Chief Justice of India (CJI) to select the persons to **helm** the Election Commission of India (ECI). The **Act**, however, **includes** a Union Minister in the committee instead of the CJI. The government argues that the Court's panel was only an **ad hoc measure** until Parliament came forward with its own law, as required in the Constitution. The **petitioners** maintain that the **thrust** of the 2022 judgment **is** that the appointment process should be **insulated** from **executive interference** so that its **functioning** will be truly independent.

Whether the CJI should be part of the selection committee is **debatable**, but there is little doubt that the 2:1 **majority** **vested** in the executive **renders** any selection **vulnerable to** the criticism that those chosen in that manner would not be seen as independent. The BJP-led government has been making appointments **in the midst of** court hearings. The Court has been declining to interfere in time, leading to such appointments becoming a **fait accompli**. The government had appointed Arun Goel as an EC in 2022, in the middle of the Constitution Bench hearing, and two ECs in March 2024 **in the run-up to** the general election to replace Mr. Goel, who had resigned, and another EC who had retired. Few will disagree that the public perception of the ECI as a fearless and **fiercely** independent institution has been on the decline. If elections are to be seen as free and fair by the whole **electorate** and not **merely** followers of the winners, the Court should not delay this matter any further. It has to **adjudicate** the question of whether the procedure **set out** in the law **falls short of** the level of independence **envisaged** in the Constitution Bench verdict for members of the ECI. **[Practice Exercise]**

- Red/blue coloring of words in the sentence indicates subject verb relationship; where 'red' denotes 'subject' and 'blue' denotes 'verb'.

Vocabulary

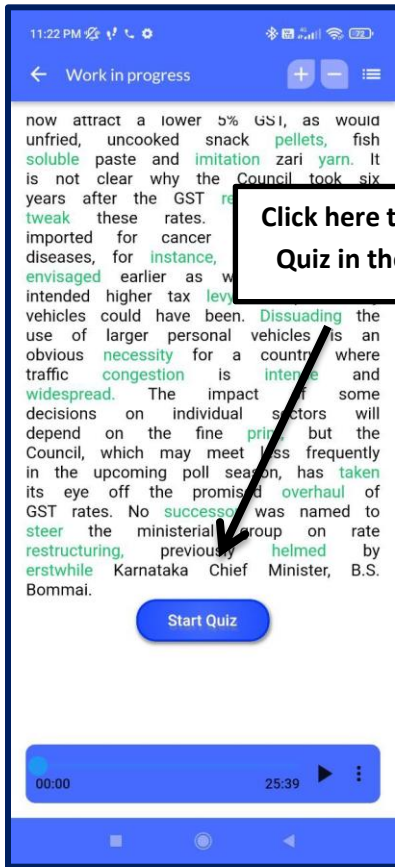
1. **Validity** (noun) – Legitimacy, Authenticity, Soundness, Credibility, Lawfulness वैधता
2. **Adjudication** (noun) – Judgment, Decision, Ruling, Verdict, Settlement निर्णय
3. **Lay down** (phrasal verb) – Establish, Prescribe, Define, Specify, Enact निर्धारित करना
4. **Defer** (verb) – Postpone, Delay, Adjourn, Suspend, Hold off टालना
5. **Hearing** (noun) – Trial, Session, Proceeding, Inquiry, Case सुनवाई
6. **Development** (noun) – Event, happening, change, incident, occurrence घटनाक्रम
7. **Interregnum** (noun) – Interval, Gap, Interim, Break, Pause अंतराल
8. **Meet** (verb) – Face, Encounter, Experience, Undergo, Confront सामना करना
9. **Elevate** (verb) – Promoted, Raised, Upgraded, Advanced, Higher पदोन्नति करना
10. **Induct** (verb) – Introduce, Install, Initiate, Appoint, Enroll शामिल करना
11. **Following** (preposition) – After, Subsequent to, Next to, Behind, In the wake of के बाद
12. **Constitution Bench** (noun) – a group of at least five judges of the Supreme Court of India that decide important constitutional cases संविधान पीठ
13. **Put in place** (phrase) – Establish, Implement, Set up, Install, Organize लागू करना
14. **Helm** (verb) – Lead, Direct, Manage, Control, Guide नेतृत्व करना
15. **Ad hoc measure** (noun) – Temporary solution, Interim arrangement, Stopgap, Provisional step, Makeshift अस्थायी उपाय
16. **Petitioner** (noun) – Applicant, Claimant, Supplicant, Appellant, Litigant याचिकाकर्ता
17. **Thrust** (noun) – Focus, Emphasis, Core, Essence, Main point मुख्य बिंदु
18. **Insulate** (verb) – Protect, Shield, Safeguard, Isolate, Separate सुरक्षित करना
19. **Executive** (adjective) – Administrative, Managerial, Governing, Regulatory, Official कार्यकारी
20. **Interference** (noun) – Meddling, Intrusion, Intervention, Obstruction, Disturbance हस्तक्षेप
21. **Functioning** (noun) – Operation, Performance, Working, Activity, Execution कार्यप्रणाली

22. **Debatable** (adjective) – Controversial, Disputable, Questionable, Arguable, Uncertain विवादास्पद
23. **Vest** (verb) – Entrust, Confer, Bestow, Grant, Empower प्रदान करना
24. **Render** (verb) – Make, Cause, Transform, Convert, Provide बनाना
25. **Vulnerable** (to) (adjective) – Susceptible, Exposed, At risk, Defenseless, Weak असुरक्षित
26. **In the midst of** (phrase) – During, In the middle of, Among, Amidst, Surrounded by के बीच
27. **Fait accompli** (noun) – Done deal, Accomplished fact, Irreversible act, Settled matter, Foregone conclusion पूर्ण सिद्धि
28. **In the run-up to** (phrase) – Before, Prior to, Leading up to, Preceding, Ahead of के पहले
29. **Fiercely** (adverb) – Intensely, Strongly, Vigorously, Passionately, Vehemently जोरदार ढंग से
30. **Electorate** (noun) – Voters, Constituency, Public, Citizens, Polling body मतदाता
31. **Merely** (adverb) – Only, Simply, Just, Solely, Purely केवल
32. **Adjudicate** (verb) – Judge, Decide, Rule, Settle, Determine निर्णय करना
33. **Set out** (phrasal verb) – Define, Outline, Specify, Detail, Present निर्धारित करना
34. **Fall short of** (phrase) – Fail to meet, Miss, Lack, Not reach, Be inadequate कम पड़ना
35. **Envisage** (verb) – Imagine, Visualize, Foresee, Anticipate, Predict कल्पना करना

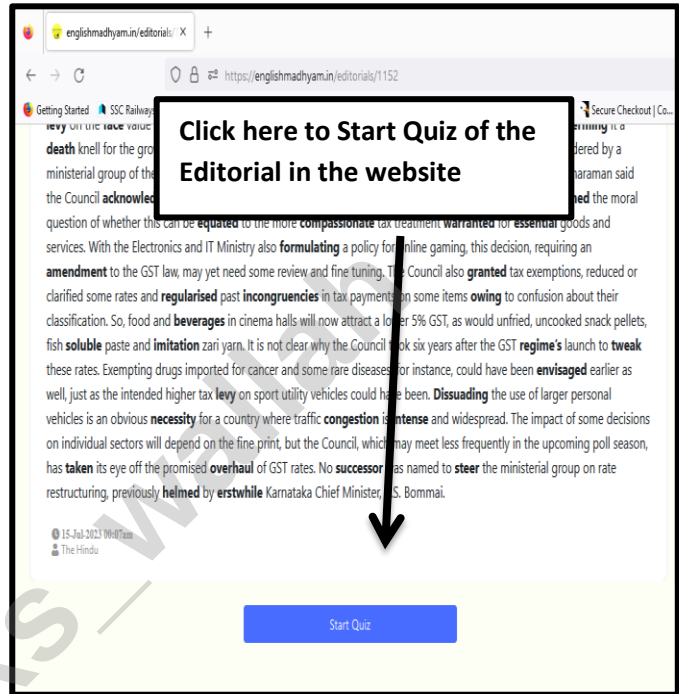
Summary of the Editorial

1. **Controversial CEC Appointment:** The appointment of Gyanesh Kumar as CEC and Vivek Joshi as EC has sparked controversy due to the ongoing legal challenge against the December 2023 law governing the selection process.
2. **Supreme Court's Deferral:** The Supreme Court deferred the hearing to February 19, noting that any interim developments would face consequences based on its final decision on the law's validity.
3. **2022 Constitution Bench Verdict:** The Court's 2022 ruling mandated a selection committee comprising the Prime Minister, Leader of the Opposition (LoP), and Chief Justice of India (CJI) to ensure the Election Commission's independence.
4. **2023 Act Changes:** The 2023 Act replaced the CJI with a Union Minister in the selection committee, raising concerns about executive influence over the process.
5. **Government's Argument:** The government claims the 2022 Court-mandated panel was temporary and that the 2023 Act aligns with the Constitution's requirement for parliamentary legislation.
6. **Opposition's Concerns:** Critics argue that the 2023 Act undermines the Election Commission's independence by giving the executive a 2:1 majority in the selection committee.
7. **Past Precedents:** The BJP-led government has made similar controversial appointments during court hearings, such as Arun Goel's appointment as EC in 2022 and two ECs in March 2024.
8. **Public Perception:** The Election Commission's reputation as an independent institution has declined, raising concerns about the fairness of elections.
9. **Need for Adjudication:** The Supreme Court must urgently decide whether the 2023 Act meets the independence standards set by the 2022 Constitution Bench verdict.
10. **Executive Influence:** The 2:1 majority in the selection committee makes the process vulnerable to executive interference, undermining public trust.
11. **Timely Resolution:** Delays in adjudicating the issue risk normalizing executive-dominated appointments, further eroding institutional credibility.
12. **Election Integrity:** Ensuring the Election Commission's independence is crucial for maintaining public confidence in the fairness of elections.
13. **Constitutional Vision:** The Court must determine if the 2023 Act aligns with the constitutional vision of an independent Election Commission.
14. **Historical Context:** The controversy reflects a broader trend of executive overreach in appointments to key constitutional bodies.
15. **Call for Action:** The Supreme Court must act swiftly to uphold the Election Commission's independence and restore public trust in the electoral process.

Practice Exercise: SSC Pattern Based



Click here to Start
Quiz in the App



Click here to Start Quiz of the
Editorial in the website

[Click here to download App](#)

[Click here to visit website](#)



Learn Vocabulary Through Reading Articles

English Madhyam